CITY OF LOS ANGELES CHARTER AMENDMENT EE

TITLE:
CITY ETHICS, ELECTIONS, AND GOVERNANCE.

THE ISSUE:
Should the City Charter be amended to: strengthen the independence of the Police Department Inspector General and Fire Department Independent Assessor; prohibit Ethics Commissioners from running for certain elected offices for five years after leaving office; increase monetary penalties for campaign finance violations; require the City Council to meet at least weekly rather than the currently required three days per week; increase the number of signatures needed for referendum petitions; and make other changes related to ethics, elections and government?

THE SITUATION:
The City Charter sets the structures, powers and responsibilities of City government.

THE PROPOSAL:
This measure would make the following changes:

- Prohibit the Executive Director and Commissioners of the Ethics Commission from running for City or Los Angeles Board of Education offices for five years after leaving their positions;
- Increase the maximum monetary penalty for campaign finance violations to the greater of $15,000 (adjusted annually for inflation), or three times the amount improperly reported or contributed, for each violation;
- Increase the number of signatures required for referendum petitions from 10 percent to 15 percent of the votes cast in the last Mayoral election;
- Strengthen the independence of the Police Department Inspector General and Fire Department Independent Assessor to open and conduct investigations or audits;
- Require the City Council to meet at least weekly rather than three days per week and make related changes to the timing requirements for veto of board actions;
- Clarify language regarding the transfer of powers for the Police Department and Fire Department; and
- Allow the definition of a Neighborhood Council stakeholder to be defined by ordinance.

A YES VOTE MEANS:
You want the Charter to be amended to make the changes described above regarding ethics, elections, and governance.

A NO VOTE MEANS:
You do not want the Charter to be amended to make the changes described above regarding ethics, elections, and governance.

THE FULL TEXT OF THIS MEASURE BEGINS ON PAGE 50.

EE CITY ETHICS, ELECTIONS, AND GOVERNANCE. CHARTER AMENDMENT EE.

Shall the City Charter be amended to: increase the authority of the Police Department Inspector General and Fire Department Independent Assessor; prohibit Ethics Commissioners from running for certain elected offices for five years; increase penalties for campaign finance violations; require City Council to meet at least weekly rather than the currently required three days per week; increase referendum petition signature requirements; and make other changes regarding ethics, elections and governance?

IMPARTIAL SUMMARY
BY SHARON M. TSO, CHIEF LEGISLATIVE ANALYST

The City Charter establishes the structure, powers, functions, processes and responsibilities of City government. The City is proposing various changes and clarifications to the City Charter regarding City ethics, elections, and governance.

The measure would amend the City Charter as follows:

- Prohibit the Executive Director and Commissioners of the Ethics Commission from running for any City elected office or Los Angeles Unified School District Board of Education office for at least five years after leaving their positions, thereby establishing a five-year post-service ban on running for City or Los Angeles Unified School District elected office;
- Increase the maximum monetary penalty for campaign finance violations to the greater of $15,000, adjusted annually for inflation, or three times the amount improperly reported or unlawfully contributed, expended, given, or received, per violation;
- Increase the number of signatures required to qualify a referendum petition for presentation to the City Council from 10 percent to 15 percent of the total number of votes cast in the last Mayoral election, the same percentage of signatures required for initiative petitions;
- Strengthen the independence of the Police Department Inspector General by removing the authority of the Board of Police Commissioners to direct the Inspector General not to commence or continue an investigation or audit;
- Strengthen the independence of the Fire Department Independent Assessor by removing the authority of the Board of Fire Commissioners to direct the Independent Assessor not to commence or continue an assessment or audit;
- Clarify language such that the Police Department and Fire Department would remain exempt from transfers or consolidation of departmental powers if it significantly alters or affects the primary purpose of the departments;
- Require that the City Council hold regular meetings at least weekly rather than meet at least three days per week, as currently required;

- Change the timing requirement for boards of commissioners actions to become final after 15 calendar days during which the City Council has convened in regular session rather than five meeting days of the City Council, as currently required in the Charter;
- Change the timing requirement associated with the City Council's ability to act before an action of the Board of Police Commissioners to remove the Chief of Police becomes final to 21 calendar days during which the City Council has convened in regular session rather than ten meeting days of the City Council, as currently required in the Charter;
- Clarify that the City shall adopt and maintain ordinances and policies to ensure that City services are accessible across various languages; and
- Incorporate several technical and terminology-related changes to provisions concerning Neighborhood Councils and indicate that the definition of Neighborhood Council stakeholder shall be defined by ordinance.

This measure will become effective if approved by a majority of voters.

FINANCIAL IMPACT STATEMENT
BY MATTHEW W. SZABO, CITY ADMINISTRATIVE OFFICER

This City Charter amendment pertains to various governance areas including: facilitating language accessibility; reducing the minimum requirement for regularly held City Council meetings; increasing the required signatures for a referendum petition; updating Charter Section 470 to align with the campaign finance penalties in Section 706; prohibiting Ethics Commissioners from running for certain offices for five years; and, allowing assessments and audits of the Fire and Police departments by the Independent Assessor or Inspector General, respectively, without oversight of their boards. The reduction in Council meetings may result in General Fund cost savings from reduced translation and closed captioning services. The changes to the Fire and Police commissions may require hiring new investigators, retaining external auditors, or expanding investigative staff depending on case volume resulting in costs that cannot be determined at this time. The other governance changes are not anticipated to have a financial impact.

ARGUMENT IN FAVOR OF CHARTER AMENDMENT EE

VOTE YES ON MEASURE EE to strengthen ethics, accountability, independent oversight, and effective governance at Los Angeles City Hall.

Measure EE strengthens the institutions responsible for holding City government accountable. It expands the authority of the Police Department Inspector General and Fire Department Independent Assessor, providing stronger independent oversight of two of the City's most critical public safety departments. It also strengthens campaign finance enforcement by increasing penalties for violations and establishes a five-year cooling-off period before Ethics Commissioners may seek certain elected City offices.

Measure EE also modernizes how the City Council conducts its work. The City Charter currently requires Council to meet at least three days each week–an unusual mandate that makes Los Angeles an outlier among major American cities and limits the time Councilmembers have to work in their districts, meet directly with constituents, implement policy and programs, and address neighborhood needs. Measure EE requires regular weekly Council meetings while allowing additional meetings as needed, providing greater flexibility to meet at times and places that accommodate the needs of residents across the City and allow Council to conduct the public's business efficiently and effectively. Los Angeles is a city of nearly four million people, and effective representation requires Councilmembers to work in their communities, respond to constituent concerns as they arise, and tackle complex policy challenges citywide.

Measure EE also updates referendum and election procedures and advances additional reforms developed through the City's Charter review process.

Together, these reforms strengthen oversight, raise ethical standards, and modernize City government while preserving transparency and public accountability.

VOTE YES ON MEASURE EE for a more ethical, accountable, and effective City government.

PERSONS SIGNING ARGUMENT IN FAVOR OF CHARTER AMENDMENT EE

TIM MCOSKER
Councilmember, District 15
City of LA

DIEGO ANDRADES
Charter Reform Commissioner

EUNISSES HERNANDEZ
Councilmember, District 1
City of LA

KATY YAROSLAVSKY
Councilwoman, District 5
City of LA

MARQUEECE HARRIS-DAWSON
Councilmember, District 8
City of LA

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ARGUMENT AGAINST CHARTER AMENDMENT EE

Charter Amendment EE is presented as an ethics reform measure, but buried within is a proposal to reduce Los Angeles City Council meetings from three times a week to once a week. Its primary effect is to reduce the number of public meetings where residents can watch proceedings, provide public comment, and hold elected officials accountable.

After years of corruption scandals and ethics failures at City Hall, Los Angeles needs more transparency not less. Fewer public meetings mean fewer opportunities for public scrutiny and greater potential for important decisions to be shaped outside the public eye.

The San Fernando Valley currently hosts City Council meetings at most once a month. If Measure EE passes, those meetings would likely occur less frequently, further limiting Valley residents' access to their elected officials.

Charter reform should expand transparency, public access, and accountability not reduce them.

Vote NO on Charter Amendment EE.

PERSONS SIGNING ARGUMENT AGAINST CHARTER AMENDMENT EE

MONICA RODRIGUEZ
Los Angeles City Councilwoman, District 7
City of Los Angeles

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REBUTTAL TO THE ARGUMENT AGAINST CHARTER AMENDMENT EE

VOTE YES ON MEASURE EE. Among other reforms, EE makes the Council more efficient and transparent, and increases access to elected representatives. EE allows Council business to be conducted in one meeting per week, making public participation in the process more predictable and certain. In addition, with business conducted in one meeting per week, councilmembers can spend more time in community, providing the services and doing the work for which they were elected.

The opposition argument for an arbitrary number of meetings perpetuates an ineffective, inefficient, and wasteful system. The opposition also ignores Measure EE's additional reforms: independent oversight of the Police and Fire Departments, increased penalties for campaign finance violations, and a five-year cooling-off period for Ethics Commissioners seeking certain elected offices.

EE creates meaningful public access and strong independent oversight–and eliminates an antiquated, arbitrary, and wasteful practice of the City Council. **VOTE YES ON MEASURE EE.**

PERSONS SIGNING REBUTTAL TO THE ARGUMENT AGAINST CHARTER AMENDMENT EE

TIM MCOSKER
Councilmember, District 15
City of LA

KATY YAROSLAVSKY
Councilwoman, District 5
City of LA

MARQUEECE HARRIS-DAWSON
Councilmember, District 8
City of LA

DIEGO ANDRADES
Charter Reform Commissioner

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New provisions or language added to the Charter or to existing Charter sections are shown in underline type; words deleted from the Charter or from existing Charter sections are shown in ~~strikeout~~ type.

CHARTER AMENDMENT EE
(CITY ETHICS, ELECTIONS, AND GOVERNANCE)

TEXT OF THE PROPOSED BALLOT MEASURE

Section 1. Section 103 of the Charter of the City of Los Angeles is amended to read as follows:

Every City office and department, and every City official and employee, is expected to perform their functions with diligence and dedication on behalf of the people of the City of Los Angeles. In the delivery of City services and in the performance of its tasks, the government shall endeavor to perform at the highest levels of achievement, including efficiency, accessibility, accountability, quality, use of technologically advanced methods, and responsiveness to public concerns within budgetary limitations. Every analysis and review of the performance of the government and its officers shall seek to ascertain whether these high standards are being met, and if not, shall recommend methods of improvement. The City shall adopt and maintain ordinances and policies to reasonably ensure that its communications, programs, and public engagement are accessible across the languages spoken by its residents, and that outreach reflects the cultural and linguistic communities of the City.

Sec. 2. Section 242 of the Charter of the City of Los Angeles, regarding the City Council's conduct of business, is amended to read as follows:

Sec. 242. Conduct of Business.

The Council shall be the sole judge of the election and qualification of its members. Meetings and records of the proceedings of the Council and of the committees of the Council shall be open to the public, except that closed sessions may be held as permitted by law. The Council shall have the exclusive power to organize its business, prescribe the rules of its proceedings and preserve order at its meetings, subject to the following:

(a) The Council shall hold regular meetings at least weekly ~~at least three days each week~~. Meetings may be held in City Hall or elsewhere in the City. By resolution, the Council may establish periods during which the Council or its committees will be in recess. The Council and its committees may also each hold special meetings with proper notice.

(b) The Council, by ordinance or resolution, shall establish a sufficient number of committees to enable it to carry out its duties. The duty of the Council and its committees is to become fully informed of the business of the City so as to oversee all the functions of the City government, and to report to the Council any information or recommendations necessary to enable the Council to properly legislate. Committees shall have the power of investigation, but shall have no administrative control over the various functions of the City government. The administration of the City government shall be vested in the officials designated in the Charter to perform those functions. The President of the Council shall appoint the members and the chair of the committees and each Council member shall be appointed to at least one committee.

Sec. 3. The first paragraph of Section 245 of the Charter of the City of Los Angeles,

regarding the timing of City Council veto of board actions, is amended to read as follows:

Sec. 245. City Council Veto of Board Actions.

Actions of boards of commissioners shall become final at the expiration of the next 15 calendar days ~~five meeting days of the Council~~ during which the Council has convened in regular session, unless the Council acts within that time by two-thirds vote to bring the action before it or to waive review of the action, except that as to any action of the Board of Police Commissioners regarding the removal of the Chief of Police, the time period within which the Council may act before the action of the Board shall become final shall be 21 calendar days ~~ten meeting days~~ during which the Council has convened in regular session.

Sec. 4. Subsection (a) of Section 461 of the Charter of the City of Los Angeles, regarding referendary petitions, is amended to read as follows:

(a) The referendary petition circulated for signature shall contain the full text of the subject ordinance. All names signed to a petition must have been secured within 30 days after publication of the ordinance. Any signature affixed outside of this time period shall not be counted in determining the sufficiency of the petition. To qualify for presentation to the Council, a referendary petition must be signed by registered voters of the City in an amount equal to 15% ~~10%~~ of the total number of votes cast for all candidates for the office of Mayor at the last general municipal election, or primary nominating election at which a Mayor was elected prior to the filing of the petition.

Sec. 5. Subparagraph (A) of Subdivision (2) of Subsection (o) of Section 470 of the Charter of the City of Los Angeles, regarding enforcement of the City's campaign finance laws, is amended to read as follows:

> (A) Any person who intentionally or negligently violates any provision of this section shall be liable in a civil action brought by the City Attorney or by a person residing within the City. Where no specific civil penalty is provided, a person may be liable for each violation for an amount up to the greater of fifteen thousand dollars ($15,000) ~~two thousand dollars ($2,000) for each violation~~, adjusted annually to reflect changes in the Consumer Price Index, or three times the amount which the person improperly reported or unlawfully contributed, expended, gave, or received.

Sec. 6. Subsection (b) of Section 514 of the Charter of the City of Los Angeles, regarding the transfer of powers of departments, offices, and boards, is amended to read as follows:

(b) **Exceptions**. The power of the Mayor and Council to act as provided in this section shall not extend to:

(1) Elected Offices;

(2) Proprietary Departments;

(3) Los Angeles City Employees' Retirement System;

(4) Department of Fire and Police Pensions;

(5) City Ethics Commission;

(6) The disciplinary functions of the Fire Department and the Police Department as contained in Sections 1060 and 1070; and

(7) The Police Department and the Fire Department, if the transfer or consolidation would significantly alter or affect the primary purpose ~~or character~~ of the departments.

(8) Independent Redistricting Commission.

Sec. 7. Section 523 of the Charter of the City of Los Angeles, regarding the Fire Department Independent Assessor, is amended to read as follows:

Sec. 523. Independent Assessor.

The Independent Assessor shall report to the Board of Fire Commissioners and shall have the same access to Fire Department information as the Board of Fire Commissioners. The Independent Assessor shall have the power and duty to:

(a) under rules established by the Board of Fire Commissioners, audit, assess and review the Fire Department's handling of complaints of misconduct committed by employees, sworn or civilian, of the Fire Department;

(b) conduct any audit or assessment requested by majority vote of the board;

(c) initiate any assessment or audit of the Fire Department or any portion of the Fire Department with prior notice to the Board of Fire Commissioners~~, and subject to the authority of the board by majority vote to direct the Independent Assessor not to commence or continue an assessment or audit~~;

(d) keep the board informed of the status of all pending assessments and audits; and

(e) appoint, discharge, discipline, transfer and issue instructions to employees under his or her direction.

Sec. 8. Section 573 of the Charter of the City of Los Angeles, regarding the Police Department Inspector General, is amended to read as follows:

Sec. 573. Inspector General.

The Inspector General shall report to the Board of Police Commissioners and shall have the same access to Police Department information as the Board of Police Commissioners. The Inspector General shall have the power and duty to:

(a) under rules established by the Board of Police Commissioners, audit, investigate and oversee the Police Department's handling of complaints of misconduct by police officers and civilian employees and perform other duties as may be assigned by the board;

(b) conduct any audit or investigation requested by majority vote of the board;

(c) initiate any investigation or audit of the Police Department without prior authorization of the Board of Police Commissioners~~, subject to the authority of the board by majority vote to direct the Inspector General not to commence or continue an investigation or audit~~;

(d) keep the board informed of the status of all pending investigations and audits; and

(e) appoint, discharge, discipline, transfer and issue instructions to employees under his or her direction.

Sec. 9. Subsection (d) of Section 700 of the Charter of the City of Los Angeles, regarding the City Ethics Commission, is amended to read as follows:

(d) Qualifications. Each member of the commission shall be a registered voter of the City. A member or former member of the commission shall not be a candidate for any City office or Los Angeles Unified School District Board of Education office unless the election for that office is to be held at least five years after the last date of service of the commissioner. An Executive Director or former Executive Director of the commission shall not be a candidate for any City office or Los Angeles Unified School District Board of Education office unless the election for that office is to be held at least five years after the last date of service of the Executive Director. ~~Neither a member of the commission nor its Executive Director shall seek election to any City office or Los Angeles Unified School District Board of Education office concerning which the commission has made a decision during the term of the commissioner or Executive Director unless the election for that office is to be held at least two years following the expiration of the term of office of the commissioner or Executive Director.~~ During their tenure, neither a member of the commission nor its Executive Director shall:

(1) hold any other public office;

(2) participate in or contribute to a City election campaign;

(3) participate in or contribute to an election campaign for a member of the Los Angeles Unified School District Board of Education;

(4) participate in or contribute to a City official or member of the Los Angeles Unified School District Board of Education running for any elective office;

(5) employ or be employed as a person required to register as a lobbyist with the City of Los Angeles;

(6) have an ownership interest in a business (other than stock in a publicly traded company) that contracts with or seeks discretionary approvals from the City; or personally provide compensated services to the City under a contract;

(7) provide compensated advice or services to a political campaign or to a committee controlled by a City officeholder; or

(8) contribute to committees such that the individual qualifies as a major donor as provided under the Political Reform Act.

Sec. 10. The amendments made to Subsection (d) of Section 700 of the Charter of the City of Los Angeles shall apply only to a member or executive director of the City Ethics Commission whose last date of City service is on or after the effective date of this Charter amendment.

Sec. 11. Sections 900 through 914 of the Charter of the City of Los Angeles, regarding Neighborhood Councils, are amended to read as follows:

Sec. 900. Purpose.

To promote more civic ~~citizen~~ participation in government and make government more responsive to local needs, a citywide system of Nneighborhood Ceouncils, and a Department of Neighborhood Empowerment is created. Neighborhood Ceouncils shall include representatives of the many diverse interests in communities and shall have an advisory role on issues of concern to the neighborhood.

Sec. 901. Department of Neighborhood Empowerment.

The Department of Neighborhood Empowerment shall have the duties and responsibilities set forth in this Article and elsewhere in the Charter to implement and oversee the ordinances and regulations creating the system of Nneighborhood Ceouncils enacted pursuant to Section 905. Duties and responsibilities shall include:

(a) prepare a plan for the creation of a system of Nneighborhood Ceouncils to ensure that every part of the City is within the boundary of a Nneighborhood Ceouncil, and has an opportunity to form a Nneighborhood Ceouncil (Plan);

(b) assist neighborhoods in preparing petitions for recognition or certification, identifying boundaries that do not divide communities, and organizing themselves, in accordance with the Plan;

(c) arrange Congress of Neighborhood meetings if requested to do so by recognized Nneighborhood Ceouncils;

(d) assist Nneighborhood Ceouncils with the election or selection of their board members ~~officers~~;

(e) arrange training for Nneighborhood Ceouncils' officers and staff;

(f) assist Nneighborhood Ceouncils to share resources, including offices, equipment, and other forms of support for them to communicate with constituents, other Nneighborhood Ceouncils and with government officials; and

(g) perform other duties as provided by ordinance.

Sec. 902. Board of Neighborhood Commissioners.

(a) There shall be a board of seven commissioners to be known as the Board of Neighborhood Commissioners (board). Commissioners shall be appointed by the Mayor, and shall be from diverse geographic areas, as further specified by ordinance. Appointment and removal of commissioners shall otherwise be in accordance with Section 502.

(b) The board shall be responsible for policy setting and policy oversight, including the approval of contracts and leases and the promulgation of rules and regulations, but shall not be responsible for day-to-day management.

(c) The board shall operate in accordance with Sections 503 through 508 and 510 of the Charter.

Sec. 903. General Manager.

(a) There shall be a general manager of the Department of Neighborhood

Empowerment who shall be appointed by the Mayor, subject to confirmation by the City Council, and may be removed as provided in Section 508.

(b) The general manager shall have those powers and duties set forth in Section 510.

(c) The general manager shall appoint, discharge and prescribe the duties of staff, consistent with the civil service provisions of the Charter.

Sec. 904. Development and Maintenance of the Neighborhood Council Plan.

The Department of Neighborhood Empowerment shall develop a Plan for a citywide system of Nneighborhood Ceouncils, in conformance with the following:

(a) The Department of Neighborhood Empowerment shall seek public input in the formulation of the Plan.

(b) The Plan shall contain a statement of goals, policies and objectives of the Neighborhood Council system, and shall contain specific regulations, in draft ordinance format (Regulations) which, if adopted by ordinance, would be sufficient to implement the Plan.

(c) The Regulations shall establish the method by which boundaries of Nneighborhood Ceouncils will be determined. The system for determining boundaries shall maintain neighborhood boundaries to the maximum extent feasible, and may consider community planning district boundaries where appropriate.

(d) The Regulations must ensure that all areas of the City are given an equal opportunity to form Nneighborhood Ceouncils.

(e) The Regulations shall establish the procedure and criteria for recognition or certification of Nneighborhood Ceouncils.

(f) The Regulations shall not restrict the method by which the members of a Nneighborhood Ceouncils are chosen, if the process otherwise satisfies the requirements of this Article.

(g) The Regulations shall require that Nneighborhood Ceouncils adopt fair and open procedures for the conduct of their business.

(h) The Mayor and City Council shall provide for the creation of the Department of Neighborhood Empowerment and appointment of the general manager within 120 days of the effective date of this Article.

Sec. 905. Initial Implementation of the Plan.

The Department of Neighborhood Empowerment shall complete development of the Plan and present the Plan and all necessary Regulations for a system of Nneighborhood Ceouncils to the City Council and Mayor within one year of the establishment of the department and commission. The City Council shall consider the Regulations, and within six months after presentation of the Plan to City Council may adopt ordinances to implement the Regulations as proposed, or as modified by the City Council consistent with the requirements of the Plan set forth in Section 904. If implementing ordinances are not adopted within this time period, the

Regulations shall become effective, and to the extent not inconsistent with law shall be binding upon all City departments and offices.

Sec. 906. Certification of Neighborhood Councils.

(a) **By-laws**. Each Nneighborhood Ceouncil seeking official certification or recognition from the City shall submit an organization plan and by-laws to the Department of Neighborhood Empowerment showing, at a minimum:

(1) the method by which their board members ~~officers~~ are chosen;

(2) Nneighborhood Ceouncil membership will be open to all stakeholders, as defined by ordinance ~~everyone who lives, works or owns property in the area (stakeholders)~~;

(3) assurances that the members of the Nneighborhood Ceouncil will reflect the diverse interests within their area;

(4) a system through which the Nneighborhood Ceouncil will communicate with stakeholders on a regular basis;

(5) a system for financial accountability of its funds; and

(6) guarantees that all meetings will be open and public, and permit, to the extent feasible, every stakeholder to participate in the conduct of business, deliberation and decision-making.

(b) **Petitioning for Certification and Approval**. Nneighborhood Ceouncils may petition for certification or recognition in accordance with rules and procedures set forth in the Plan.

Sec. 907. Advance Notice and Opportunities for Input ~~Early Warning System~~.

The Regulations shall establish procedures for receiving input from Nneighborhood Ceouncils prior to decisions by the City Council, City Council Committees and boards and commissions. The procedures shall include, but need not be limited to, notice to Nneighborhood Ceouncils as soon as practical, and a reasonable opportunity to provide input before decisions are made. Notices to be provided include matters to be considered by the City Council, City Council Committees, and City boards or commissions.

Sec. 908. Powers of Neighborhood Councils.

Subject to applicable law, the City Council may delegate its authority to Nneighborhood Ceouncils to hold public hearings prior to the City Council making a decision on a matter of local concern.

Sec. 909. Annual City Budget Priorities.

Each Nneighborhood Ceouncils may present to the Mayor and City Council an annual list of priorities for the City budget. The Mayor shall inform certified Nneighborhood Ceouncils of the deadline for submission so that the input may be considered in a timely fashion.

Sec. 910. Monitoring of City Services.

Nneighborhood Ceouncils shall monitor the delivery of City services in their respective

areas and have periodic meetings with responsible officials of City departments, subject to their reasonable availability.

Sec. 911. Appropriation.

The Mayor and City Council shall appropriate funds for the Department of Neighborhood Empowerment and for the startup and functioning of Nneighborhood Ceouncils for the first two years after the effective date of this Article. Funds shall be appropriated into a special fund to be established by ordinance. The Mayor and City Council shall thereafter appropriate funds for the department and Nneighborhood Ceouncils at least one year in advance of each subsequent fiscal year.

Sec. 912. Review.

The Mayor and City Council shall appoint a commission as prescribed by ordinance to evaluate the provisions of this Article, the Regulations adopted pursuant to this Article, and the efficacy of the system of Nneighborhood Ceouncils no later than seven years after the adoption of the Charter. The commission shall make recommendations to the City Council regarding changes to the Charter or the Regulations, as it deems appropriate.

Sec. 913. Transfer of Powers.

Notwithstanding any other provision of the Charter, the Mayor and City Council shall not transfer powers, duties or functions of the Department of Neighborhood Empowerment to any other department, office or agency pursuant to Section 514 during the first five years after implementation of the Plan pursuant to Section 905.

Sec. 914. Effect of Ordinances.

The City Council may adopt ordinances concerning Nneighborhood Ceouncils consistent with requirements for the Plan set forth in Section 904 at any time, which ordinances shall supersede any inconsistent Regulations that have become effective pursuant to Section 905.

Sec. 12. Severability. If any section, subsection, clause, sentence, phrase, or application of this Charter amendment or any portion thereof is held unconstitutional or invalid by any court or tribunal of competent jurisdiction, the remaining sections, subsections, clauses, sentences, phrases, portions, or applications of this Charter amendment shall remain in full force and effect, and to this end the provisions of this Charter amendment are severable. In addition, the voters declare that they would have passed all sections, subsections, clauses, sentences, phrases, portions, and applications of this Charter amendment without the section, subsection, clause, sentence, phrase, portion, or application held unconstitutional or invalid.